

BYLAWS

DAB ENERGY TRUST

Doubs · Adamstown · Buckeystown — Our Home, Our Coalition

Draft governing instrument to be adopted by County Council ordinance and attached to any CDI site-plan condition or Development Rights and Responsibilities Agreement. Not legal advice. Formerly styled Adamstown–Buckeystown Energy Trust in prior draft filings; prefer DAB ENERGY TRUST in all public-facing materials.

Article I — Name and seat

The name of this body is the DAB ENERGY TRUST (Doubs · Adamstown · Buckeystown). The principal office shall be in Doubs, Adamstown, or Buckeystown, Frederick County, Maryland. Meetings shall not be confined to Winchester Hall.

Article II — Purpose

The Trust holds and pays an energy dividend to residential electric service points whose service address lies within the Adamstown Census Designated Place, the Buckeystown Census Designated Place (2020 Census places), or on a Doubs parcel / service-address list published and adopted by County Council ordinance, Frederick County, Maryland, funded by Critical Digital Infrastructure electrical load and by rent from campus-serving public infrastructure. Doubs is an unincorporated populated place / hamlet (GNIS Class U6), not a Census CDP; eligibility is via that published list only. The Trust is not a general-fund account and is not a countywide slogan. ZIP codes are not the eligibility lock.

Exclusive by design. Tier 1 is Doubs, Adamstown, and Buckeystown only—not Frederick City, not other county communities. The dividend is the floor; the boundary is the wall. This Trust exists so these three communities keep their homes beautiful and do not open the gate to freeloader expansion, apartments, or sprawl without the process in Articles III, IX, and IX-A.

Article III — Beneficiaries

Tier 1 only: a homestead or a residential lease of twelve months or more at a residential electric meter whose USPS street-delivery service address lies within the Adamstown CDP, the Buckeystown CDP, or on the published Doubs list once adopted by ordinance, located in Frederick County. One share per electric meter. Excluded: campus owners and affiliates. The Council may exclude non-homestead second homes. No commercial account except a farm or home-based account at a residence.

Hard Census household total for the two CDPs: Adamstown CDP 710 + Buckeystown CDP 499 = 1,209. No Doubs household or meter count is stated in these bylaws. Doubs is not a Census CDP;

eligibility is via the published parcel / service-address list only. Until that list exists, public materials may say: Adamstown CDP + Buckeystown CDP (1,209 Census households) plus Doubs addresses on the published Doubs list.

Before the first payment, the County Council shall publish a meter eligibility list mapped to Adamstown and Buckeystown CDP boundaries and parcels and to the adopted Doubs list. The Council may refine that list by ordinance to correct boundary or addressing errors; it may not expand Tier 1 to other communities except by a board vote under Article IX, the elder consult under Article IX-A where it applies, AND a new ordinance titled as an expansion. Routine clerical corrections of addressing errors that do not enlarge Tier 1 geography, and automatic Census sync of Adamstown/Buckeystown CDP lines, are outside Article IX-A (see Article IX-A).

Article IV — Board

Five voting members.

Community representation lock (required): at all times the board shall include at least one voting seat held by an Adamstown CDP resident, at least one voting seat held by a Buckeystown CDP resident, and at least one voting seat held by a Doubs-list resident (subject to the interim Doubs rule below). Each of the three communities must have representation on the Trust board at all times.

Default apportionment: two Adamstown CDP seats, two Buckeystown CDP seats, and one Doubs seat (2 / 2 / 1). That split satisfies the each-town rule. The County Council may change the apportionment by ordinance only if each of the three communities still retains at least one voting seat. This Article does not invent Doubs household or meter counts and does not weight seats by unverified Doubs population.

Doubs seat — interim FLAG: Until the Doubs parcel / service-address list is adopted by County Council ordinance, the Doubs voting seat may be held by a resident whose USPS street-delivery service address lies in the Doubs hamlet area (unincorporated populated place / GNIS Class U6), pending list adoption. Once that list is live, the Doubs seat must be held by a Doubs-list resident, and the board may not expand Tier 1 geography under Articles IX and IX-A without Doubs representation remaining filled under this Article.

Staggered four-year terms. Quorum: three.

Chair must live in the Adamstown CDP, the Buckeystown CDP, or qualify for the Doubs seat under this Article. Treasurer required.

County Director of Finance or designee sits non-voting.

No employee or equity holder of a CDI operator or master developer.

Article IV-A — Elections sketch (rough outline; not final election code)

This Article is a short sketch for bylaws discussion and for a town-hall script note. It is not a finished election code and does not displace Maryland election law where applicable.

CDP, and Doubs-list addresses once published). Preferred venue: Adamstown Park or Buckeystown Park. Alternate venues in Doubs, Adamstown, or Buckeystown may be used if the preferred venue is unavailable.

Voters show proof of residence at check-in: Maryland driver's license or ID with a Tier 1 service address, a recent utility bill at that address, or a current residential lease of twelve months or more at that address. Keep the process simple and local. The board shall publish notice of the town hall date, place, and proof-of-residence rules at least fourteen days in advance. Contested seats may be decided by show of hands or written ballot of those checked in; details to be fixed by board resolution consistent with this outline and with any County Council ordinance.

Article V — Duties

Receive megawatt reports and infrastructure-lease rent.

Set the annual dividend within the proposed ordinance floor, formula, and cap (Schedule A — proposed, not enacted until Council adopts).

Direct payment as a utility credit or county rebate.

Publish by March 31 each year: MW online, receipts, meters paid, dollars per meter.

Vote against any sweep of Trust principal into the general fund.

Protect the Tier 1 boundary: oppose expansion of beneficiaries outside Doubs, Adamstown, and Buckeystown except under Articles IX and IX-A.

Article VI — Funds

Restricted accounts: (1) Dividend, (2) Infrastructure rent, (3) Reserve equal to six months of the floor. Fiscal year July 1. Investments limited to instruments eligible for Maryland local-government funds.

Article VII — Meetings

Quarterly. At least two meetings each year shall be held in Doubs, Adamstown, or Buckeystown. Maryland Open Meetings Act applies. Minutes posted.

Article VIII — Conflicts

A member shall recuse if a household member is employed by a CDI operator. Annual written disclosure.

Article IX — Amendment and expansion lock

Bylaws change only by four-fifths of the board and a County Council ordinance. Article II (purpose) and the geography lock in Article III may not be amended to add other communities—including Frederick City—except by (1) a board vote on the proposed expansion and (2) a new County Council ordinance titled as an expansion. No freeloader expansion by silence, ZIP stretch, or informal courtesy. Before any board vote on a Tier 1 geography change covered by Article IX-A, the board shall complete the elder consult required by that Article.

Article IX-A — Elder consult on geography changes

Before the board votes on any Tier 1 geography change, the board shall consult in good faith with ten residents age 65 or older who have lived in Doubs, Adamstown, or Buckeystown (Tier 1 geographies — on the Doubs list or in either CDP) for at least ten years. The consult is advisory, on the record, and not a veto. A short summary of who was consulted and what was heard shall be published with the meeting minutes.

Geography changes subject to this Article include all of the following: (a) adopting or majorly amending the Doubs parcel / service-address list; (b) expanding Tier 1 to any other community (which still also requires a board vote under Article IX AND a new County Council ordinance titled as an expansion); and (c) any other amendment to the Article III geography lock, including attempts to stretch ZIP codes, add “nearby” places, or make informal courtesy adds.

This Article does not apply to: (1) routine clerical corrections of addressing errors on an already-adopted list that do not enlarge Tier 1 geography; or (2) automatic sync of Adamstown or Buckeystown CDP lines when the Census Bureau updates those CDP boundaries (follow the Census — no local redraw).

Article X — Dissolution

On dissolution, remaining funds pay one last dividend to eligible Adamstown CDP, Buckeystown CDP, and Doubs-list meters. Any residue goes only to energy-burden aid within those Tier 1 geographies.

Schedule A — Payment rule (proposed with the ordinance; not enacted law until adopted)

Proposed floor: \$250 per eligible meter per year once any CDI hall on the overlay is energized.

Formula: \$1 per megawatt-hour of campus IT load in the prior twelve months, allocated only to eligible DAB meters (Adamstown CDP, Buckeystown CDP, and Doubs-list meters). The annual credit is the formula result, not less than the floor and not more than the cap.

Proposed cap: \$1,000 per meter per year until the Council raises it by resolution.

Preferred payment: line on the electric bill. Default: county rebate or property-tax credit labeled DAB Energy Dividend (Doubs · Adamstown · Buckeystown).

Default: no certificate of occupancy for additional CDI load if the Trust is unpaid.